POWERWEALTH(PTY) LTD
TERMS AND CONDITIONS OF USE AND SALE
Effective Date: 18 March 2026
Last Updated: 18 March 2026
Version: 1

1. DEFINITIONS AND INTERPRETATION
1.1 In these Terms and Conditions ("Terms"), unless the context indicates otherwise:

1.1.1 "Agreement" means these Terms, together with the Privacy Policy, Cookie Policy, and any schedules, annexures, or policies incorporated by reference;

1.1.2 "Business Day" means any day other than a Saturday, Sunday, or South African public holiday;

1.1.3 "Consumer" or "you" or "your" means any natural person, or a juristic person with an asset value or annual turnover below the threshold determined by the Minister in terms of CPA section 5(2)(b), who accesses the Website or purchases Products or Services;

1.1.4 "CPA" means the Consumer Protection Act 68 of 2008, including its regulations;

1.1.5 "ECTA" means the Electronic Communications and Transactions Act 25 of 2002;

1.1.6 "Information Officer" means [Full Name], contactable at [email], [telephone number], as registered with the Information Regulator;

1.1.7 "Parties" means POWERWEALTH and the Consumer, and "Party" means either one of them;

1.1.8 "Personal Information" has the meaning ascribed thereto in POPIA section 1;

1.1.9 "POPIA" means the Protection of Personal Information Act 4 of 2013, including its regulations;

1.1.10 "POWERWEALTH" or "we" or "us" or "our" means Powerwealth(Pty) Ltd, registration number 2023/ 522871/07, a private company duly registered and incorporated in accordance with the laws of the Republic of South Africa, with its registered address at Roosevelt Park, Randburg, 2195, South Africa, email address info@powerwealth.co.za, website www.powerwealth.co.za;

1.1.11 "Products" means any goods, equipment, devices, or tangible items offered for sale through the Website, including but not limited to solar panels, inverters, batteries, mounting equipment, and related accessories;

1.1.12 "Services" means any services offered by POWERWEALTH through the Website, including but not limited to [energy consulting, system design, installation, maintenance, monitoring, subscription-based energy services — specify as applicable];

1.1.13 "Website" means the website accessible at www.powerwealth.co.za.

1.2 In these Terms:

headings are for convenience only and do not affect interpretation;
words importing the singular include the plural and vice versa;
a reference to a statute includes its amendments and re-enactments;
if any provision in a definition is a substantive provision conferring a right or imposing an obligation, effect shall be given to it as if it were a substantive provision in the body of these Terms;
the rule of construction that a contract shall be interpreted against the Party responsible for drafting shall not apply (per CPA section 4(4), this provision yields to any interpretation more favourable to the Consumer where the CPA applies).
2. SUPPLIER INFORMATION (ECTA SECTION 43 COMPLIANCE)
2.1 In compliance with section 43 of ECTA, the following information is provided:

| Item | Details |
|---|---|
| Full name and legal status | Powerwealth(Pty) Ltd |
| Registration number | 2023/ 522871/07 |
| Physical address | Roosevelt Park, Randburg, 2195, South Africa |
| Postal address | Roosevelt Park, Randburg, 2195, South Africa |
| Email address | info@powerwealth.co.za |
| Website | www.Powerwealth.co.za |
| Names of office bearers/directors | Lucky N Khumalo |
| Email address for service of legal documents | info@powerwealth.co.za |

3. ACCEPTANCE AND FORMATION OF AGREEMENT
3.1 These Terms govern your access to and use of the Website and any purchase of Products or Services.

3.2 By clicking "I Accept," creating an account, or placing an order through the Website (each, an "Acceptance Event"), you:

confirm that you have read, understood, and agree to be bound by these Terms;
confirm that you are at least 18 years of age and have the legal capacity to enter into a binding agreement; and
where you act on behalf of a juristic person, confirm that you are duly authorised to bind that juristic person.
3.3 If you do not agree to these Terms, you must immediately discontinue use of the Website and refrain from placing any orders.

3.4 An electronic transaction concluded on this Website is not binding until POWERWEALTH has sent you a confirmation of receipt and acceptance of your order by email, which constitutes POWERWEALTH's acceptance of your offer. The confirmation will contain the details required by ECTA section 43(2).

3.5 These Terms constitute an "electronic transaction" as defined in ECTA, and the provisions of ECTA Chapter III (Part 2) apply.

4. PRODUCTS AND SERVICES
4.1 POWERWEALTH offers Products and Services as described on the Website. We make reasonable efforts to display and describe Products accurately, including specifications, images, and pricing.

4.2 Despite our reasonable efforts, errors may occur. Where a material error exists in the description, specification, or pricing of a Product or Service:

POWERWEALTH will notify you as soon as reasonably practicable;
You will be entitled to cancel the order and receive a full refund of any amount paid; or
You may accept the corrected information, in which case the order will be amended accordingly.
4.3 Products are subject to availability. Where a Product is unavailable after you have placed an order, POWERWEALTH will notify you within [5] Business Days and provide a full refund.

5. PRICING AND PAYMENT
5.1 All prices displayed on the Website are in South African Rand (ZAR) and include VAT at the prevailing rate, unless expressly stated otherwise.

5.2 POWERWEALTH reserves the right to change prices at any time prior to your order being accepted. Once an order is confirmed under clause 3.4, the confirmed price shall apply.

5.3 Payment may be made via [specify: credit card, debit card, EFT, payment gateway (e.g., PayFast, Peach Payments, etc.)].

5.4 Payment processing is handled through [specify payment gateway], which is a PCI-DSS compliant third-party service provider. POWERWEALTH does not store your full credit card details.

5.5 You warrant that the payment information provided is accurate and that you are authorised to use the selected payment method.

6. DELIVERY
6.1 Delivery of Products will be effected to the delivery address specified in your order, in accordance with the method and estimated delivery timeframes specified on the Website or in the order confirmation.

6.2 Estimated delivery dates are not guaranteed. POWERWEALTH will make reasonable efforts to meet them but shall not be liable for delays caused by circumstances beyond its reasonable control, subject to clause 17 (Force Majeure).

6.3 Risk of loss or damage to Products passes to you upon delivery at the specified delivery address, in accordance with CPA section 19.

6.4 If delivery cannot be effected after [2] reasonable attempts, the order may be returned to POWERWEALTH's premises, and you will be notified. You will bear the cost of redelivery unless the failure was attributable to POWERWEALTH.

7. COOLING-OFF AND CANCELLATION RIGHTS
⚠️ IMPORTANT — YOUR STATUTORY RIGHTS:

7.1 In accordance with ECTA section 44, if you have concluded an electronic transaction on this Website, you have the right to cancel the transaction within 7 (seven) days after the date on which you received the Products, or the date on which the agreement for Services was concluded, whichever is applicable — without reason and without penalty.

7.2 In the event of cancellation under clause 7.1:

You must return the Products to POWERWEALTH at [return address] in their original condition and packaging;
POWERWEALTH will refund the full purchase price within 15 (fifteen) Business Days of receiving the returned Products;

The direct cost of returning the Products shall be borne by you, unless the Products were defective or incorrectly supplied.
7.3 Where a transaction arises from direct marketing (as defined in the CPA), you are additionally entitled to cancel the transaction within 5 (five) Business Days after the later of the date on which the transaction was concluded or the date on which the Products were delivered, in accordance with CPA section 16(3).

7.4 The cooling-off right does not apply to:

Products that have been customised or made to your specifications;
Products that by their nature cannot be returned or are liable to deteriorate rapidly;
Digital content that has been accessed, downloaded, or streamed.
8. RETURNS, REFUNDS AND WARRANTY
8.1 Statutory warranties under the CPA apply to all Products sold to consumers:

Under CPA section 55, you have the right to receive goods that are reasonably suitable for their intended purpose, of good quality, in good working order, and free of defects.
Under CPA section 56, an implied warranty of quality applies for 6 (six) months from the date of delivery. If a Product is defective within this period, you are entitled, at your choice, to have the Product repaired, replaced, or to receive a refund, in accordance with CPA section 56(3).
8.2 To exercise your warranty rights, contact us at info@powerwealth.co.za with:

your order number;
a description of the defect; and
photographic evidence of the defect (where reasonably possible).
8.3 Any manufacturer warranties provided in addition to the statutory warranties are set out in the documentation accompanying the Product and are enforceable directly against the manufacturer. Such warranties are supplementary to, and do not limit, your statutory rights.

8.4 This clause does not exclude or limit POWERWEALTH's liability under CPA section 61 (product liability for harm caused by defective goods, including liability as distributor, retailer, or importer, as applicable).

9. USER ACCOUNTS
9.1 You may be required to create an account to access certain features of the Website. You are responsible for:

maintaining the confidentiality of your account credentials;
all activities that occur under your account;
notifying POWERWEALTH immediately of any unauthorised use.
9.2 POWERWEALTH reserves the right to suspend or terminate your account if it reasonably believes that:

your account credentials have been compromised;
you have violated these Terms; or
your account is being used fraudulently.
9.3 POWERWEALTH will, where reasonably practicable, provide you with notice and an opportunity to remedy any breach before termination, except where immediate suspension is necessary to prevent harm or fraud.

10. USER CONTENT AND SUBMISSIONS
10.1 You may submit reviews, comments, feedback, suggestions, or other content ("User Content") through the Website.

10.2 By submitting User Content, you grant POWERWEALTH a non-exclusive, royalty-free, perpetual (for the duration of the intellectual property rights), worldwide licence to use, reproduce, modify, display, and distribute the User Content solely for purposes of operating, improving, and promoting the Service. For the avoidance of doubt, POWERWEALTH shall not use your User Content for separate commercial exploitation (e.g., selling it to third parties, or using it in paid advertising) without obtaining your prior written consent.

10.3 You retain ownership of all intellectual property rights in your User Content, subject to the licence granted in clause 10.2. No transfer of intellectual property rights is effected by these Terms.

10.4 You warrant that:

you own or have the necessary rights to submit the User Content;
the User Content does not infringe any third party's intellectual property, privacy, or other rights;
the User Content is not unlawful, defamatory, obscene, threatening, or otherwise objectionable;
the User Content does not contain viruses, malware, or harmful code.
10.5 If you believe that any content on the Website infringes your intellectual property rights, you may submit a written notice to [Information Officer / designated person] at [email], including:

identification of the work claimed to be infringed;
identification of the allegedly infringing material;
your contact information;
a statement of good faith belief; and
a statement under oath that the information is accurate and you are the rights holder or authorised agent.
POWERWEALTH will respond within [10] Business Days.

10.6 POWERWEALTH may, in its reasonable discretion, remove or edit User Content that it determines violates these Terms, applicable law, or the rights of any person.

11. INTELLECTUAL PROPERTY
11.1 All intellectual property rights in and to the Website, its design, layout, text, graphics, logos, icons, images, software, and underlying technology ("POWERWEALTH IP") are owned by or licensed to POWERWEALTH and are protected under applicable South African and international intellectual property laws.

11.2 You may not reproduce, distribute, modify, create derivative works of, publicly display, or otherwise exploit any POWERWEALTH IP without POWERWEALTH's prior written consent.

11.3 The POWERWEALTH name, logo, and all related names, marks, and slogans are trademarks of POWERWEALTH. Nothing in these Terms grants you any right to use them.

12. PERSONAL INFORMATION AND DATA PROTECTION
12.1 POWERWEALTH is the responsible party as defined in POPIA for the processing of your Personal Information in connection with the Website and Services.

12.2 Our Information Officer is Lucky N Khumalo, contactable at:

Email: info@powerwealth.co.za
Address: Roosevelt Park, Randburg, 2195, South Africa

12.3 We collect and process the following categories of Personal Information:

Identity information (name, surname, ID/passport number);
Contact information (email, telephone, physical address);
Financial information (payment details — processed through secure third-party gateway);
Technical information (IP address, browser type, device information, cookies);
Transactional information (order history, service records);
Communication records (emails, chat logs, support tickets).
12.4 We process your Personal Information for the following purposes and on the following legal bases:

| Purpose | Legal Basis (POPIA) |
|---|---|
| Performing the contract with you | Section 11(1)(b) |
| Compliance with legal obligations (tax, etc.) | Section 11(1)(c) |
| Protecting your or another's legitimate interest | Section 11(1)(d) |
| Pursuing POWERWEALTH's legitimate interests | Section 11(1)(f) |
| Marketing (with consent) | Section 11(1)(a) |

12.5 You have the following rights under POPIA:

Right of access (s23);
Right to rectification (s24);
Right to deletion (s24, read with s14);
Right to object to processing (s11(3));
Right not to be subject to automated decision-making (s71);
Right to lodge a complaint with the Information Regulator (www.justice.gov.za/inforeg).
12.6 We retain Personal Information only for as long as necessary to fulfil the purposes described in clause 12.4, or as required by law. A data retention schedule is available upon request.

12.7 We may share Personal Information with:

Payment processors (for processing transactions);
Delivery/logistics partners (for fulfilment);
Professional advisors (legal, accounting);
Regulatory authorities (where required by law).
All third-party service providers are required by contract to process Personal Information in accordance with POPIA.

12.8 Personal Information may be transferred to jurisdictions outside South Africa only where:

the recipient is subject to laws or binding agreements providing an adequate level of protection (POPIA s72(1)(a));
you have consented to the transfer (POPIA s72(1)(b)); or
the transfer is necessary for the performance of a contract between you and POWERWEALTH (POPIA s72(1)(c)).
12.9 In the event of a data breach that creates a reasonable risk of harm to you, POWERWEALTH will:

notify the Information Regulator as soon as reasonably possible (POPIA s22(1)); and
notify you as soon as reasonably possible after notification to the Regulator (POPIA s22(4)),
providing the details required by POPIA section 22(5).
12.10 For detailed information, please refer to our Privacy Policy available at [hyperlink]. The Privacy Policy is incorporated into these Terms by reference.

12.11 Where the GDPR applies (i.e., where POWERWEALTH processes Personal Information of data subjects located in the European Union in the course of offering goods or services to them), POWERWEALTH will also comply with the GDPR, including the appointment of an EU representative where required by GDPR Article 27.

13. COOKIES
13.1 The Website uses cookies and similar tracking technologies. For details on the types of cookies used, their purposes, and your choices, please refer to our Cookie Policy at [hyperlink].

13.2 By using the Website and accepting our cookie notice, you consent to the use of cookies as described in the Cookie Policy.

14. ACCURACY OF INFORMATION
14.1 POWERWEALTH makes reasonable efforts to ensure the accuracy of information on the Website. However, the Website may contain inadvertent errors, inaccuracies, or omissions.

14.2 Where information on the Website is provided for general informational purposes (e.g., educational content, blog posts, guides), it does not constitute professional advice, and you should not rely on it as the sole basis for decisions. POWERWEALTH recommends consulting a qualified professional for advice specific to your circumstances.

14.3 This disclaimer does not exclude POWERWEALTH's liability for:

loss caused by intentionally or negligently providing false information;
material misrepresentations in Product or Service descriptions that induce a purchase decision; or
any liability that cannot be excluded by law.
15. PROHIBITED CONDUCT
15.1 You may not use the Website or Services to:

(a) engage in any unlawful activity or solicit others to do so;
(b) infringe the intellectual property rights of POWERWEALTH or any third party;
(c) upload, transmit, or distribute viruses, malware, or harmful code;
(d) harass, abuse, defame, or discriminate against any person;
(e) collect or harvest personal information of other users without authorisation;
(f) circumvent, disable, or interfere with security features of the Website;
(g) impersonate any person or entity, or misrepresent your affiliation;
(h) engage in any conduct that, in POWERWEALTH's reasonable determination, restricts or inhibits the use of the Website by others;
(i) use any automated system (including bots, scrapers, or crawlers) to access the Website without POWERWEALTH's prior written consent;
(j) use the Website for unsolicited commercial communications (spam).
15.2 POWERWEALTH reserves the right to investigate suspected violations and to take appropriate action, which may include:

issuing a written warning;
suspending access to the Website;
terminating your account;
reporting the conduct to law enforcement authorities.
15.3 Before terminating access under this clause, POWERWEALTH will, except in cases of fraud, illegal conduct, or imminent harm, provide you with:

written notice of the alleged violation;
a reasonable opportunity (not less than [5] Business Days) to respond or remedy the violation.
16. DISCLAIMER OF WARRANTIES AND LIMITATION OF LIABILITY
⚠️ IMPORTANT — PLEASE READ CAREFULLY. THIS CLAUSE LIMITS POWERWEALTH'S LIABILITY. IN TERMS OF CPA SECTION 49, YOUR ATTENTION IS SPECIFICALLY DRAWN TO THIS CLAUSE.

16.1 Disclaimer:
To the maximum extent permitted by law, and subject to clause 16.3:

the Website is provided on an "as is" and "as available" basis;
POWERWEALTH does not warrant that the Website will be uninterrupted, error-free, secure, or free of viruses or harmful components;
POWERWEALTH makes no representations or warranties of any kind, whether express or implied, regarding the Website, including implied warranties of merchantability, fitness for a particular purpose, and non-infringement, except to the extent that such warranties cannot be excluded by law.
16.2 Limitation of Liability:
Subject to clause 16.3, POWERWEALTH's total aggregate liability to you for all claims arising out of or in connection with these Terms, the Website, Products, or Services — whether in contract, delict (tort), strict liability, or otherwise — shall not exceed the greater of (a) the total amount paid by you to POWERWEALTH in the 12 (twelve) months preceding the event giving rise to the claim.

16.3 Non-Excludable Liability:
Nothing in these Terms excludes or limits POWERWEALTH's liability for:

(a) death or personal injury caused by POWERWEALTH's negligence;
(b) fraud or intentional misconduct;
(c) product liability under CPA section 61;
(d) the implied warranty of quality under CPA section 56;
(e) any other liability that cannot be excluded or limited under applicable law, including the CPA, ECTA, or POPIA.
16.4 POWERWEALTH shall not be liable for any:

indirect, incidental, special, consequential, or punitive damages;
loss of profits, revenue, data, or business opportunity;
arising out of or in connection with these Terms, the Website, Products, or Services, except to the extent that such exclusion is prohibited by applicable law.
17. FORCE MAJEURE
17.1 Neither Party shall be liable for any failure or delay in performing its obligations under these Terms where such failure or delay results from circumstances beyond its reasonable control, including but not limited to: acts of God, natural disasters, epidemics or pandemics, war, terrorism, civil unrest, government action or regulation, power outages, internet or telecommunications failures, fire, flood, or labour disputes ("Force Majeure Event").

17.2 The affected Party must:

notify the other Party in writing as soon as reasonably practicable;
take reasonable steps to mitigate the impact; and
resume performance as soon as the Force Majeure Event ceases.
17.3 If a Force Majeure Event continues for more than [60] days, either Party may terminate the Agreement by written notice, and neither Party shall have any further liability to the other except for obligations accrued prior to termination.

18. INDEMNIFICATION
⚠️ IMPORTANT — THIS CLAUSE REQUIRES YOU TO INDEMNIFY POWERWEALTH IN CERTAIN CIRCUMSTANCES. IN TERMS OF CPA SECTION 49, YOUR ATTENTION IS SPECIFICALLY DRAWN TO THIS CLAUSE.

18.1 You agree to indemnify, defend, and hold harmless POWERWEALTH, its directors, employees, and agents from and against any claims, damages, losses, liabilities, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

(a) your breach of these Terms;
(b) your violation of any applicable law;
(c) your User Content;
(d) your use of the Website in a manner not authorised by these Terms.
18.2 This indemnity:

is limited to direct damages reasonably and foreseeably arising from the relevant conduct;
does not apply to the extent that the claim arises from POWERWEALTH's own negligence, wilful misconduct, or breach of these Terms;
does not require you to indemnify POWERWEALTH for its own obligations under the CPA, ECTA, POPIA, or any other applicable law.
18.3 POWERWEALTH will:

notify you promptly of any claim subject to indemnification;
provide you with reasonable assistance in defending the claim; and
not settle any claim without your prior consent (not to be unreasonably withheld).
19. THIRD-PARTY LINKS AND SERVICES
19.1 The Website may contain links to third-party websites or services that are not owned or controlled by POWERWEALTH.

19.2 POWERWEALTH has no control over, and assumes no responsibility for, the content, privacy policies, or practices of any third-party websites. You access such websites at your own risk, and POWERWEALTH encourages you to review their terms and policies.

19.3 A link to a third-party website does not constitute an endorsement by POWERWEALTH.

20. TERMINATION
20.1 Termination by You:
You may terminate this Agreement at any time by:

notifying POWERWEALTH in writing at info@powerwealth.co.za; and
ceasing all use of the Website and Services.
20.2 Termination by POWERWEALTH:
POWERWEALTH may terminate this Agreement or suspend your access to the Website:

(a) immediately, if you engage in fraud, illegal activity, or conduct that poses an imminent risk of harm to POWERWEALTH, its users, or third parties;
(b) upon [15] Business Days' written notice, if you are in material breach of these Terms and fail to remedy such breach within the notice period.
20.3 Effects of Termination:
Upon termination:

(a) your right to use the Website and Services ceases immediately;
(b) POWERWEALTH will process any refund due to you for Products or Services paid for but not yet delivered or rendered, within [15] Business Days;
(c) POWERWEALTH will retain your Personal Information only as permitted or required under POPIA and clause 12, and will delete or de-identify it in accordance with the data retention schedule;
(d) all amounts due and payable to POWERWEALTH prior to the date of termination remain payable.
20.4 Clauses that by their nature should survive termination shall survive, including: 10 (User Content licence), 11 (IP), 12 (Data Protection), 16 (Limitation of Liability), 18 (Indemnification), 22 (Governing Law), 23 (Dispute Resolution), and this clause 20.

21. AMENDMENTS
21.1 POWERWEALTH may amend these Terms from time to time.

21.2 For amendments that are material (i.e., those that affect your rights, obligations, or the scope of the Services), POWERWEALTH will:

provide you with at least 30 (thirty) calendar days' prior written notice by email (to the email address associated with your account) and/or by prominent notice on the Website;
clearly indicate the nature of the changes; and
state the effective date of the amended Terms.
21.3 If you do not agree to the amended Terms, you may terminate the Agreement under clause 20.1 before the effective date, without penalty.

21.4 Your continued use of the Website or Services after the effective date of the amended Terms constitutes your acceptance of the amended Terms.

21.5 For amendments that are not material (e.g., corrections of typographical errors, formatting changes), POWERWEALTH may implement them immediately, and the updated Terms will be posted on the Website with a revised "Last Updated" date.

21.6 The most current version of these Terms is always available at [URL].

22. GOVERNING LAW
22.1 These Terms are governed by and construed in accordance with the laws of the Republic of South Africa.

22.2 Nothing in these Terms excludes the application of mandatory consumer protection legislation, including the CPA, ECTA, and POPIA.

23. DISPUTE RESOLUTION
23.1 Informal Resolution:
In the event of any dispute arising out of or in connection with these Terms ("Dispute"), the Parties shall first attempt to resolve the Dispute through informal negotiation by written notice to the other Party. Each Party shall use reasonable endeavours to resolve the Dispute within 20 (twenty) Business Days of receipt of the notice.

23.2 Mediation:
If the Dispute is not resolved through informal negotiation, either Party may refer the Dispute to mediation administered by the Arbitration Foundation of Southern Africa ("AFSA") in accordance with AFSA's Mediation Rules. The costs of mediation shall be shared equally unless otherwise agreed.

23.3 Arbitration:
If the Dispute is not resolved through mediation within 30 (thirty) calendar days of referral, either Party may refer the Dispute to final and binding arbitration administered by AFSA in accordance with AFSA's Arbitration Rules. The arbitration shall be:

conducted in [Johannesburg/Cape Town/Durban — specify];
conducted in the English language;
determined by a single arbitrator appointed in accordance with AFSA's Rules.
23.4 Costs:
The arbitrator shall have the discretion to make any appropriate order as to costs, including ordering the unsuccessful Party to pay the reasonable legal costs of the successful Party.

23.5 Urgent and Interim Relief:
Nothing in this clause prevents either Party from approaching a court of competent jurisdiction for urgent interim or conservatory relief.

23.6 Consumer Rights Preserved:
Nothing in this clause limits your right to:

approach the National Consumer Commission or the National Consumer Tribunal under the CPA;
lodge a complaint with the Information Regulator under POPIA;
approach a court of competent jurisdiction where mandatory legislation requires it;
bring proceedings in the small claims court where the claim falls within its jurisdiction.
24. SEVERABILITY
24.1 If any provision of these Terms is found by a court of competent jurisdiction to be invalid, unlawful, or unenforceable:

that provision shall be modified to the minimum extent necessary to make it valid and enforceable, while preserving the Parties' original intent;
if modification is not possible, the provision shall be severed from these Terms;
the remaining provisions shall continue in full force and effect.
25. ENTIRE AGREEMENT
25.1 These Terms, together with the Privacy Policy, Cookie Policy, and any order confirmation issued by POWERWEALTH, constitute the entire agreement between you and POWERWEALTH in respect of the subject matter hereof.

25.2 These Terms supersede all prior or contemporaneous agreements, representations, warranties, and negotiations, whether oral or written, relating to the subject matter hereof.

25.3 No provision of this clause limits any statutory rights that cannot be excluded by agreement.

26. WAIVER
26.1 No failure or delay by POWERWEALTH in exercising any right or remedy under these Terms shall constitute a waiver of that right or remedy.

26.2 A waiver of any right or remedy shall only be effective if given in writing and signed by an authorised representative of POWERWEALTH, and shall not constitute a waiver of any subsequent breach or default.

27. ASSIGNMENT
27.1 You may not assign, delegate, or transfer any of your rights or obligations under these Terms without POWERWEALTH's prior written consent.

27.2 POWERWEALTH may assign its rights and obligations under these Terms to an affiliate, successor, or acquirer, provided that such assignment does not materially diminish your rights under these Terms. POWERWEALTH will notify you of any such assignment.

28. NOTICES
28.1 All formal notices under these Terms must be in writing and shall be deemed duly given when:

delivered by hand — on the date of delivery;
sent by registered post — 7 (seven) Business Days after posting;
sent by email — on the date of transmission, provided that a delivery confirmation or read receipt is received, or that the email is not returned as undeliverable.
28.2 Notices must be sent to:

To POWERWEALTH:

Physical: Roosevelt Park, Randburg, 2195, South Africa
Email: info@powerwealth.co.za
Marked for the attention of: Lucky N Khumalo

To the Consumer:

To the physical or email address provided during registration or the most recent address on file.
28.3 Either Party may change its address for notices by written notice to the other Party.

28.4 The addresses set out in this clause constitute the Parties' respective domicilia citandi et executandi for all purposes under these Terms and for service of legal process.

29. GENERAL
29.1 No provision of these Terms is intended to, or shall, confer any right or benefit upon any third party (except to the extent required by the CPA or other applicable law).

29.2 Where any provision of these Terms requires the consent, approval, or decision of POWERWEALTH, such consent, approval, or decision shall not be unreasonably withheld, delayed, or qualified, unless expressly stated otherwise.

29.3 The rule of interpretation known as the contra proferentem rule shall not apply to these Terms — save to the extent that the CPA requires interpretation in favour of the Consumer (CPA section 4(4)).

30. CONTACT INFORMATION
For questions, complaints, or requests related to these Terms, please contact:

Powerwealth(Pty) Ltd

| Channel | Details |
|---|---|
| Email | info@powerwealth.co.za |
| Physical Address | Roosevelt Park, 2195, Randburg, South Africa |
| Postal Address | Roosevelt Park, 2195, Randburg, South Africa |
| Information Officer | Lucky N Khumalo, info@powerwealth.co.za |

For complaints regarding consumer rights, you may also contact:

National Consumer Commission: www.thencc.gov.za
Information Regulator (POPIA): www.justice.gov.za/inforeg